

**Tentative Rulings for August 12, 2026**  
**Department 403**

**For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)**

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There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

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The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

**24CECG04797**      ***QL Titling Trust Ltd. v. ASHU Transport, Inc.*** is continued to Wednesday, September 9, 2026, at 3:30 p.m. in Department 403.

**25CECG00488**      ***Erica Elizondo v. Nissan North America, Inc.*** is continued to Thursday, September 10, 2026, at 3:30 p.m. in Department 403.

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(Tentative Rulings begin at the next page)

## **Tentative Rulings for Department 403**

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(03)

**Tentative Ruling**

Re: ***Gash v. California Teaching Fellows Foundation***  
Case No. 24CECG03347

Hearing Date: August 12, 2026

Motion: Plaintiffs' Motion for Preliminary Approval of Class and PAGA Settlement

**Tentative Ruling:**

To deny plaintiffs' motion for preliminary approval of class and PAGA settlement, without prejudice.

**If oral argument is timely requested, it will be entertained on  
Thursday, August 13, 2026, at 3:30 p.m. in Department 403.**

**Explanation:**

**1. Class Certification**

**a. Standards**

First, the court must determine whether the proposed class meets the requirements for certification before it can grant preliminary approval of the proposed settlement. An agreement of the parties is not sufficient to establish a class for settlement purposes. There must be an independent assessment by a neutral court of evidence showing that a class action is proper. (*Luckey v. Superior Court* (2014) 228 Cal. App. 4th 81 (rev. denied); see also Newberg, *Newberg on Class Actions* (T.R. Westlaw, 2017) Section 7:3: "The parties' representation of an uncontested motion for class certification does not relieve the Court of the duty of determining whether certification is appropriate.")

"Class certification requires proof (1) of a sufficiently numerous, ascertainable class, (2) of a well-defined community of interest, and (3) that certification will provide substantial benefits to litigants and the courts, i.e., that proceeding as a class is superior to other methods. In turn, the community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class." (*In re Tobacco II Cases* (2009) 46 Cal. 4th 298, 313.)

**b. Numerosity and Ascertainability**

"Ascertainability is achieved by defining the class in terms of objective characteristics and common transactional facts making the ultimate identification of class members possible when that identification becomes necessary. While often it is said that class members are ascertainable where they may be readily identified without unreasonable expense or time by reference to official records, that statement must be considered in light of the purpose of the ascertainability requirement. Ascertainability is required in order to give notice to putative class members as to whom the judgment in

the action will be res judicata.” (*Nicodemus v. Saint Francis Memorial Hospital* (2016) 3 Cal.App.5th 1200, 1212, internal citations and quote marks omitted.)

Here, the class appears to be ascertainable, as defendant's personnel records should be sufficient to allow the parties to identify the class members. The class is also sufficiently numerous to justify certification, as plaintiff's counsel claims that there are 10,275 class members who worked for defendant during the class period. Therefore, the court intends to find that the class is sufficiently numerous and ascertainable for certification.

**c. Community of Interest**

“[T]he ‘community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021, internal citations omitted.) “The focus of the typicality requirement entails inquiry as to whether the plaintiff's individual circumstances are markedly different or whether the legal theory upon which the claims are based differ from that upon which the claims of the other class members will be based.” (*Classen v. Weller* (1983) 145 Cal. App. 3d 27, 46.) “[T]he adequacy inquiry should focus on the abilities of the class representative's counsel and the existence of conflicts between the representative and other class members.” (*Caro v. Procter & Gamble Co.* (1993) 18 Cal. App. 4th 644, 669.)

Here, it does appear that there are common questions of law and fact, as all of the proposed class members worked for the same defendant and allegedly suffered the same type of Labor Code violations. Therefore, the proposed class involves common issues of law and fact.

With regard to the requirement of typicality of the representative's claims, it does appear that the named plaintiffs' claims are typical of the rest of the class and that they seek the same relief as the other class members. There is no evidence that the named plaintiffs have any conflicts between their interests and the interests of the other class members that would make them unsuitable to represent their interests. Therefore, plaintiffs have shown that they have claims typical of the other class members.

Plaintiffs' counsel have submitted declarations that establish that they are experienced and qualified to represent the class. Counsel's declarations discuss their background, education, and experience in class action litigation. Therefore, counsel have provided sufficient evidence to support their assertion that they are experienced and qualified to represent plaintiffs and the other class members here.

**d. Superiority of Class Certification**

It does appear that certifying the class would be superior to any other available means of resolving the disputes between the parties. Absent class certification, each employee of defendant would have to litigate their claims individually, which would result in wasted time and resources relitigating the same issues and presenting the same testimony and evidence. Class certification will allow the employees' claims to be resolved in a relatively efficient and fair manner. (*Sav-On Drugs Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 340.) Therefore, plaintiffs have shown that class certification is the superior means of resolving her claims.

**Conclusion:** The court intends to grant certification of the class for the purpose of settlement.

## **2. Settlement**

### **a. Fairness, Adequacy, and Reasonableness of the Settlement**

"In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as 'the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.' The list of factors is not exclusive and the court is free to engage in a balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244–245, internal citations omitted, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

Here, plaintiffs' counsel has presented a sufficient discussion of the strength of the case if it went to trial, the risks, complexity, and duration of further litigation, and an explanation of why the settlement is fair and reasonable in light of the risks of taking the case to trial.

Plaintiff's counsel estimates that defendant faced a maximum potential liability of \$9,155,776 in damages, plus potential waiting time penalties of \$13,958,222 and potential wage statement penalties of \$14,951,200. However, there were substantial barriers to recovery, including defendants' contention that the claims were without merit and were not suitable for class certification. There was a risk that the court would deny certification. Thus, plaintiff substantially discounted the defendant's liability based on the inherent risks of trying the class claims.

The PAGA claim also carried substantial risks. The parties agreed that it was reasonable to allocate \$35,000 to the PAGA claims. The PAGA claims are subject to the same defenses and risks as the other claims, as well as defenses unique to PAGA, the risk that PAGA penalties would not be stacked, and the risk that the court might reduce the penalties in order to avoid duplicative, arbitrary, or oppressive penalties.

Therefore, plaintiffs have shown that the settlement is fair, reasonable, or adequate in light of the unique facts and legal issues raised by the plaintiffs' case. Even though plaintiffs have a strong case and defendant's liability is potentially much higher than \$1,700,000, plaintiffs reasonably accepted less than the maximum potential liability based on the risks of going to trial, the possibility that they might not be able to establish willful violations of the law, and the danger that the court might reduce the amount of penalties even if plaintiffs did prevail at trial. As a result, the court intends to find that the settlement is fair, adequate and reasonable under the circumstances.

### **b. Proposed Class Notice**

The proposed notice appears to be adequate. The notice will provide the class members with information regarding their time to opt out or object, the nature and amount of the settlement, the impact on class members if they do not opt out, the amount of attorney's fees and costs, and the service award to the named class

representative. As a result, the court intends to find that the proposed class notice is adequate and grant preliminary approval of the class notice.

### **3. Attorney's Fees and Costs**

Plaintiffs' counsel seeks attorney's fees of \$566,666, which is one-third of the gross settlement. Plaintiffs' attorneys have provided their declarations, which describe their education, skill, and experience. However, counsel has not provided any evidence regarding the time they spent on the case, or what their hourly rates are. Therefore, plaintiffs' counsel has not provided any information that would allow the court to conduct a lodestar analysis of the requested fees to determine whether they are reasonable in light of the work done on the case. (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 504 [holding that trial court may award fees based on a percentage of the common fund in class actions, but it may also conduct a lodestar cross-check of the request for attorney's fees in order to confirm the fees are reasonable].) As a result, the court intends to find that plaintiffs' counsel has not adequately supported the request for \$566,666 in fees.

In addition, counsel also seeks an award of up to \$42,000 in costs. Again, however, counsel has not provided a summary of its actual costs incurred so far in the case, so it is impossible to determine that the request for up to \$42,000 is reasonable here.

### **4. Payment to Class Representative**

Plaintiff seeks preliminary approval of a \$30,000 service award to the named plaintiffs/class representatives, with \$15,000 going to Ms. Gash and \$15,000 to Mr. Quarles. Ms. Gash has provided a declaration that supports the request for a service award, as she states that she worked closely with plaintiffs' counsel, provided documents, answered questions, and participated in meetings about the case with counsel.

However, Mr. Quarles' declaration does not discuss the work that he did on the case and why he should receive a service award of \$15,000. The request for a \$15,000 service award is also unusually high, as courts generally grant awards in the \$5,000 to \$10,000 range. (See cases cited in decl. of Nordrehaug, ¶ 35, most of which approved service awards of \$10,000.) Plaintiffs' counsel has not explained why the named plaintiffs here should receive an award that is substantially higher than the average award in class actions.

Therefore, the court will not grant preliminary approval of the incentive award to the named plaintiffs at this time.

### **5. Payment to Class Administrator**

ILYM Group, Inc. will receive up to \$55,000 to administer the settlement. However, the declaration of CPT's representative states that the fee for administration services will be \$49,950. (Rogers decl., ¶ 10, and Exhibit C thereto.) As a result, the court will not grant preliminary approval of the payment to the administrator at this time, as the administration fees quoted by ILYM Group are about \$5,000 less than the requested amount.

### **6. PAGA Settlement**

Plaintiffs propose to allocate \$35,000 of the settlement to the PAGA claims, with 75% of that amount being paid to the LWDA as required by law and the other 25% being paid out to the aggrieved employees. Plaintiffs' counsel states that he gave notice of the settlement to the LWDA on the same date that he filed the motion for preliminary approval. (Nordrehaug decl., ¶ 38 and Exhibit 5 thereto.) Therefore, plaintiffs' counsel has shown that he complied with PAGA's requirement to give notice of the settlement to the LWDA. (See Labor Code, § 2699, subd. (s)(2).)

Plaintiffs' counsel also states that he believes that paying \$35,000 to settle the PAGA claim is fair, reasonable and adequate in light of the substantial risks in litigating the PAGA claims, including the risk that the court might reduce the penalties to avoid an unduly harsh result. Therefore, plaintiffs' counsel has adequately explained why settling the PAGA claims is fair, adequate and reasonable, and the court intends to grant preliminary approval of the PAGA portion of the settlement.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

**Tentative Ruling**

**Issued By:** SMC **on** August 11, 2026.  
(Judge's initials) (Date)

(03)

**Tentative Ruling**

Re: ***Foremost Insurance Co. v. Miller-Phelen, Inc.***  
Case No. 25CECG01570

Hearing Date: August 12, 2026 (Dept. 403)

Motion: Defendant Harley-Davidson Motor Co.'s Demurrer to Second Amended Complaint

**Tentative Ruling:**

To overrule defendant Harley-Davidson Motor Co.'s demurrer to the second amended complaint. (Code Civ. Proc., § 430.10, subds. (e), (f).) To order defendant to file its answer to the second amended complaint within ten days of the date of service of this order.

**If oral argument is timely requested, it will be entertained on  
Thursday, August 13, 2026, at 3:30 p.m. in Department 403.**

**Explanation:**

Defendant Harley-Davidson demurs to the fourth cause of action for breach of express warranty on the grounds that it fails to allege facts sufficient to constitute a cause of action and that it is ambiguous and uncertain. However, defendant has not made any attempt to show that the fourth cause of action does not allege all of the facts necessary to state a claim for breach of express warranty. It does not even discuss the elements of a breach of express warranty claim or explain why the SAC does not allege facts to support the required elements of the claim. Nor has it argued in its points and authorities brief that the fourth cause of action is so vague, ambiguous and confusing that defendant cannot reasonably respond to it. Therefore, defendant has failed to meet its burden of providing authorities or argument to support its stated grounds for the demurrer.

Instead, defendant argues that plaintiff has improperly attempted to "split" its cause of action because there is another case filed by the family of the decedent arising out of the same incident, and that decedent's family also seeks damages for loss of the motorcycle. (See Request for Judicial Notice, Exhibit A, First Amended Complaint filed in *Breazeale v. Fresno Harley-Davidson*, case no. 24CECG01093. The court intends to take judicial notice of the first amended complaint filed in the related action.) Defendant argues that plaintiff is not allowed to maintain a separate suit based on the same violation of a primary right alleged in the first action, and therefore the second action should be dismissed. (*Allstate Ins. Co. v. Mel Rapton, Inc.* (2000) 77 Cal.App.4th 901, 908-909.)

It appears that defendant is arguing that Foremost's cause of action is barred under Code of Civil Procedure section 430.10, subdivision (c), which permits a defendant to demur to a complaint on the ground that there is another action pending between

the same parties on the same cause of action. However, defendant did not raise this ground in its notice of demurrer, so the contention is not properly before the court here.

Even if defendant had raised the ground in its notice of demurrer, defendant has not shown that it would be entitled to a dismissal of the second-filed cause of action. At most, defendant may raise the existence of the earlier-filed action as a plea in abatement where the earlier action is still pending and no judgment has been entered in the earlier case. (*Allstate v. Mel Rapton, supra*, at p. 910.)

"The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement; or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata." (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 682, citations omitted.)

Here, there is no final judgment in the first action filed by decedent's family. Therefore, the plaintiff's fourth cause of action in the present action is not barred by res judicata. Since the first action is still pending before the court, at most defendant would be entitled to raise the existence of the first action as a plea in abatement. In other words, defendant could ask the court to suspend proceedings in the present action until the earlier-filed case has been finally resolved. "[A] plea in abatement is now treated essentially as a request not that an action be terminated, but that it be continued until such time as there has been a disposition of the first action." (1A Cal. Jur. 3d (2026) Actions, § 222.)

In the present case, however, defendant has not requested the court to abate or suspend the present action until the earlier filed action has been resolved. Instead, defendant seeks to have the fourth cause of action dismissed entirely, which is improper. Therefore, the court intends to overrule the demurrer, as defendant has failed to show that it is entitled to the relief it seeks.

Finally, the court notes that plaintiff has now filed a motion to consolidate the present action with the earlier action filed by decedent's family. (The court intends to take judicial notice of the motion to consolidate cases filed in case no. 24CECG01093.) Assuming that the motion to consolidate is granted, there will no longer be two actions pending on the same primary right, which should eliminate any potential problems with duplicative actions being heard by separate courts on the same claim. Therefore, in light of the likelihood that the two cases will soon be consolidated and heard together, there is no need for the court to dismiss or abate the fourth cause of action in the present case.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

#### **Tentative Ruling**

**Issued By:** SMC **on** August 11, 2026.  
(Judge's initials) (Date)

(03)

**Tentative Ruling**

Re: **Daniels v. Sanchez**  
Case No. 25CECG05589

Hearing Date: August 12, 2026 (Dept. 403)

Motion: Plaintiff's Demurrer to Answer of Defendant James Sittre

**If oral argument is timely requested, it will be entertained on  
Thursday, August 13, 2026, at 3:30 p.m. in Department 403.**

**Tentative Ruling:**

To take the demurrer to James Sittre's answer off calendar, as plaintiff has not filed a notice of demurrer, demurrer, or points and authorities brief in support of the demurrer. Plaintiff has only filed a declaration and proposed order in support of the demurrer, which is insufficient to support the requested relief. (See Cal. Rules of Court, rules 3.113; 3.1320.) Accordingly, the matter is hereby taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

**Tentative Ruling**

Issued By: SMC on August 11, 2026.  
(Judge's initials) (Date)